

STATE OF NEW YORK

4656--A

2025-2026 Regular Sessions

IN SENATE

February 10, 2025

Introduced by Sen. OBERACKER -- read twice and ordered printed, and when printed to be committed to the Committee on Civil Service and Pensions -- recommitted to the Committee on Civil Service and Pensions in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to authorize the granting of retirement service credit in the New York state and local police and fire retirement system to Michael V. Layman for service as a university police officer

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Notwithstanding any inconsistent provision of law, Michael
2 V. Layman a retiree of the New York state and local police and fire
3 retirement system who was employed as a Zone Sergeant until his retire-
4 ment on November 29, 2020, and who was a member of the New York state
5 and local employees' retirement system while employed as a university
6 police officer by the State University of New York at Cortland the State
7 University of New York at Delhi, and the State University of New York at
8 Oneonta from May 26, 1988 until March 30, 1992, which service is not
9 deemed to be police service for purposes of the New York state and local
10 police and fire retirement system pursuant to section 381-b of the
11 retirement and social security law, shall be granted retirement service
12 credit pursuant to section 381-b of the retirement and social security
13 law for such employment as a university police officer at the State
14 University of New York at Cortland, the State University of New York at
15 Delhi, and the State University of New York at Oneonta as if such
16 service was rendered with the division of state police prior to his
17 retirement and have his retirement benefit recalculated as of November
18 29, 2020, if, on or before December 31, 2026, he shall file a written
19 request to that effect with the state comptroller.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD03528-05-6

- 1 § 2. All service costs attributable to the operation of this act shall
2 be borne by the state of New York.
3 § 3. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would grant Michael V. Layman, a retiree of the New York State and Local Police and Fire Retirement System and former New York State Police officer, additional service credit for time worked as a university police officer.

If this bill is enacted during the 2026 Legislative Session, there will be an immediate past service cost of \$133,000 borne by the state of New York as a one-time payment. This cost assumes that payment will be made on March 1, 2027.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated February 10, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-105. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.